

Ross on Crime

D

Defence

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Defence

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[4.700] How a defence is raised

In *R v Taylor* [1967] 2 NSWLR 278; 85 WN (Pt 1) NSW 392 (CCA) Moffitt J said (at 294; 399):

[T]he “defence” must be raised by the accused in the sense that he must be able to point to evidence in either the Crown case or his own case from which it is open to the jury, by inference and not speculation, at least to infer that in fact he honestly believed the woman consented, but that once there is material to so raise the matter, the ultimate onus rests on the Crown, so that the principles applicable as to when a direction should be given and the directions which should be given as to onus of proof are the same principles as are applicable in respect of other so-called “defences”, such as self-defence, the defence of automatism and provocation under the common law.

Approved:

Verdon v The Queen (1987) 30 A Crim R 388 (WA CCA) where Burt CJ said (at 391):

[T]he statement of the law formulated by Moffitt J in *R v Taylor* [1967] 2 NSWLR 278; 85 WN (Pt 1) NSW 392 ... is the law of the Code.

[4.705] Proof on balance of probabilities

Generally

In *Sodeman v The King* (1936) 55 CLR 192 Dixon J said (at 216):

Where by statute or otherwise the burden of disproving facts or of proving a particular issue is thrown upon a party charged with a criminal offence, he is not required to satisfy the tribunal beyond reasonable doubt. It is sufficient if he satisfies them in the same manner and to the same extent as is required in the proof of a civil issue.

Application

R v Wilson (No 2) (2007) 169 A Crim R 553 at 567 [69] (SA CCA);

R v Tween [1965] VR 687 (FC) per Pape J at 701.

[4.710] Defence fairly supported by evidence but not fanciful

In *R v Tikos (No 1)* [1963] VR 285 (CCA) Sholl J said (at 289):

[T]he trial judge is not bound to leave merely fanciful theories, which nothing in the evidence fairly supports, just in case counsel may later argue on an appeal that they ought to have been put. But anything which may conceivably be thought by a reasonable jury to be a serious possibility should be dealt with by the jury.

Followed:

R v Bozikis [1981] VR 587; (1980) 5 A Crim R 58 at 596, 76 (CCA).

In *R v Payne* [1970] Qd R 260 (CCA) the court said in a joint judgment (at 264):

It is of course true that a judge is bound to direct the jury as to a defence which is supported by the evidence but is not advanced by the accused; ... But this does not mean that a judge must search his mind for fanciful interpretations of the evidence in order to put them to the jury as possible defences, particularly if he is not asked to do so by counsel for the accused.

Approved:

R v Skerrett (2001) 119 A Crim R 510 at 516 [25] (CA).

In *R v Lovett* [1972] VR 413 (CCA) Little J, giving the judgment of the court, said that a trial judge is (at 419):

[O]bliged to see that an issue of fact which is capable of providing a defence to the charge is put before the jury for their determination: vide *Mancini v DPP* [1942] AC 1 at pp 7-8; [1941] 3 All ER 272 ; *R v Lovesey* [1970] 1 QB 352 at 356; [1969] 2 All ER 1077.

In *Viro v The Queen* (1978) 141 CLR 88; 18 ALR 257 Gibbs J said (at 118):

A judge, if any doubt as to whether there is sufficient material to raise such an issue should leave the issue to the jury.

See also

R v Howe (1958) 100 CLR 448 at 459;

Viro v The Queen (1978) 141 CLR 88; 18 ALR 275 at 117 (CLR);

R v Lane [1983] 2 VR 449; (1983) 8 A Crim R 182 at 456 (CCA);

Zecevic v DPP (Vic) (1987) 162 CLR 645; 25 A Crim R 163; 71 ALR 641 at 662–663, 665 (CLR);

R v Gillman (1994) 62 SASR 460 (CCA);

R v Hawes (1994) 35 NSWLR 294 (CCA);

R v Ngakyunkwokka [2023] QCA 85.

[4.715] Duty of defence counsel

In *R v Youssef* (1990) 50 A Crim R 1 (NSW CCA) Hunt J, with whom the others agreed, said (at 3):

In every case, the accused bears an *evidentiary* onus to point to or to produce evidence ... from which it could be inferred that – as I would prefer to put it – there is at least a reasonable possibility that, for example, the act of the accused was accidental, or that it was provoked or done in self-defence: cf *Purkess v Crittenden* (1965) 114 CLR 164 at 168, 171.

Followed:

DPP v Olcer (2003) 143 A Crim R 337 at 341 [22] (Vic, Nathan J).

Both of the above were automatism cases.

[4.720] Defence to be negated

The prosecution must negative a so-called defence if such defence is raised in the evidence.

In *R v Abusafiah* (1991) 24 NSWLR 531; 56 A Crim R 424 (CCA), Hunt J delivering the leading judgment said (at 541; 435):

[I]n all cases in which a so-called “defence” is raised by an accused (such as duress, self-defence or provocation), the issue is whether the Crown has eliminated any reasonable possibility that the accused acted under duress or in self-defence or under provocation, as the case may be.

Approved in the following duress cases:

R v Lanciana (1996) 84 A Crim R 268 at 271 (Vic CA);

R v Zaharias (2001) 122 A Crim R 586 at 598 [69] (Vic CA).

[4.725] Prosecution not to rebut fancy defences

The warning that the prosecution cannot rebut the remote defence comes from *Thompson v The King* [1918] AC 221; [1918-19] All ER Rep 521; (1917) 13 Cr App R 61 (HL). Lord Sumner said (at 232; 526; 78):

The prosecution cannot credit the defence with fancy defences in order to rebut them at the outset with some damning piece of prejudice.

Approved:

Killick v The Queen (1981) 147 CLR 565; 37 ALR 407 per Gibbs CJ, Murphy and Aickin JJ at 571;

Perry v The Queen (1982) 150 CLR 580; 44 ALR 449 per Gibbs CJ at 588.

But the prosecution can lead evidence to rebut an anticipated defence.

R v J (1996) 88 A Crim R 399 (Vic CA) per Southwell AJA at 406.

That rebuttal evidence might show a criminal propensity. In *Makin v AG (NSW)* [1894] AC 57 (PC) Lord Hershell said (at 68):

[T]he mere fact that the evidence adduced tends to shew the commission of other crimes does not render it inadmissible if it be relevant to an issue before the jury, and it may be so relevant if it bears upon the question whether the acts alleged to constitute the crime charged in the indictment were designed or accidental, or to rebut a defence which would otherwise be open to the accused.

[4.730] Onus of proof

Most defences must be disproved by the prosecution once they are raised by the evidence. Two exceptions are insanity and diminished responsibility. The defence must prove these exceptions on the balance of probabilities.

Uniform Evidence Acts s 141(2) gives legislative effect to this standard of proof.

141 Criminal proceedings: standard of proof

- (2) In a criminal proceeding, the court is to find the case of a defendant proved if it is satisfied that the case has been proved on the balance of probabilities.

The term “criminal proceeding” is defined in Dictionary Part 1.

criminal proceeding means a prosecution for an offence and includes:

- (a) a proceeding for the committal of a person for trial or sentence for an offence; and
- (b) a proceeding relating to bail;

but does not include a prosecution for an offence that is a prescribed taxation offence within the meaning of Part III of the *Taxation Administration Act 1953*.

[4.735] Defence duty to disclose

Some legislation requires the defence to disclose some of its evidence to the prosecution. That duty is in addition to giving notice of alibi.

See also

Alibi at [\[1.3800\]](#); and **Disclosure** at [\[4.2800\]](#).